

23SMCV02080 23SMCV02080

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TENTATIVE RULING

June 12, 2026

23SMCV02080 (Baber v. City of
Culver, et. al.)

RELEVANT BACKGROUND

On May 12, 2023, plaintiff Patricia Baber (Plaintiff) filed her complaint against defendants City of Culver City, City of Los Angeles, and County of Los Angeles. The matter arises from a trip-and-fall incident in a Southern California DMV office.

On August 29, 2023, Plaintiff filed her First Amended Complaint (FAC).

On July 10, 2024, DMV propounded written discovery upon Plaintiff. (Vollmer Decl. at ¶ 4.) Plaintiff served non-Code-compliant responses to DMV's form interrogatories, special interrogatories, requests for admission, and requests for production on September 6, 2024. (Id.)

On March 5, 2025, this Court held a Status Conference, and the Court ordered Plaintiff to provide further, verified discovery responses to DMV by April 4, 2025. (Id. at ¶17.) Plaintiff did not comply with the Court's order. (Id.)

On September 22, 2025,
the Court held a hearing on DMV's motions to compel and issued orders granting all three motions. (Id. at ¶ 28.) The Court ordered Plaintiff to produce verified discovery responses within 10 days of service of the order (by October 3, 2025) and to attend and testify at a deposition within 30 days (by October 22, 2025). (Id.) The Court further ordered Plaintiff to pay monetary sanctions on each of DMV's motions to compel (\$228.00/hour for 10 hours for each motion, for a total of \$6,840.00) (by October 3, 2025). (Id.)

At the September 22,
2025 hearing, the Court denied DMV's alternate request for terminating sanctions. (Id. at ¶ 30.) The Court wrote: "'The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.'" (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992.)" (Id.) At the hearing, the Court stated that the denial was without prejudice.

Plaintiff disregarded
the Court's September 22nd Order and Plaintiff never produced any verified discovery responses and never attended or testified at a deposition. (Id. at ¶ 30.) Moreover, neither Plaintiff's counsel nor Plaintiff paid any monetary sanctions as imposed by the Court at DMV's request. (Ibid.)

INSTANT MOTION

On December 3, 2025, defendant State
of California, acting by and through the Department of Motor Vehicles (DMV) filed the instant motion for terminating sanctions. On June 12, 2026, the Court continued the hearing on the motion to July 17, 2026, and gave Plaintiff until July 2, 2026, to file an opposition. No opposition has been filed. DMV filed a reply indicating that no opposition has been received.

DISCUSSION

California discovery law
authorizes a range of penalties for conduct amounting to misuse of the discovery process, including terminating sanctions. (Code Civ. Proc., § 2023.030.) Misuses of the discovery process include the following: "(d) Failing to respond or to submit to an authorized method of discovery. [¶] (e) Making, without substantial justification, an unmeritorious objection to discovery. [¶]"

(f) Making an evasive response to discovery. [¶] (g) Disobeying a court order to provide discovery.” (Id., § 2023.010.) Terminating sanctions may take the form of “[a]n order rendering a judgment by default against [the offending] party.” (Id., § 2023.030, subd. (d)(4).)

Generally, “[a] decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279–280.) Courts have properly imposed terminating sanctions when parties have willfully disobeyed one or more discovery orders (Los Defensores, Inc. v. Gomez (2014) 223 Cal.App.4th 377, 390, review denied (Apr. 16, 2014).) In deciding whether to impose a terminating sanction, the trial court is to consider the totality of the circumstances: the “conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.” (Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.)

Here, DMV argues that terminating sanctions are appropriate because Plaintiff has not meaningfully engaged in the litigation she originated against DMV since at least October of 2024. DMV points out that, at this juncture, Plaintiff has failed to comply with several orders issued by the Court related to discovery responses and to her appearance and testimony at her deposition. Moreover, DMV requested an order imposing monetary sanctions against Plaintiff’s counsel and Plaintiff, which this Court granted on September 22, 2025, and no monetary sanctions have been paid to date. Thus, DMV concludes that the Court’s successive orders, up to and including imposing monetary sanctions, have been unilaterally disregarded by Plaintiff, and therefore terminating sanctions are proper.

No opposition has been filed.

The Court agrees with DMV that terminating sanctions are appropriate at this juncture. Plaintiff has failed to respond to discovery, pay monetary sanctions, litigate this matter for several years, or oppose the instant motion. (See Vollmer Decl.) In light of the procedural history and Plaintiff’s failure to comply with the Court’s previous orders, DMV’s request is appropriate.

Accordingly, Defendant's unopposed motion for terminating sanctions is GRANTED.

Defendant's motion for an order deemed its Requests for Admission admitted is DENIED AS MOOT, and the accompanying request for monetary sanctions is DENIED.